NOTICE OF PUBLIC HEARING

The New Mexico Department of Health (Department) will hold a public hearing on the proposed adoption of a new rule, 7.35.4 NMAC, and the proposed amendment of existing rule section 7.35.2.7 NMAC, concerning the New Mexico Medical Psilocybin Program ("Program"). The hearing will be held on Friday, November 20, 2026 at 9:00 a.m. in the Harold Runnels Building auditorium, located at 1190 St. Francis Drive, Santa Fe, New Mexico. The hearing will also be broadcast via a live web-based video conference, and via telephone. Members of the public who wish to submit public comment regarding the proposed rule will be able to do so in person at the hearing, via video conference, or via telephone during the hearing, and by submitting written comment.

The proposed rule 7.35.4 NMAC would adopt standards for the Medical Psilocybin Treatment Equity Fund. The rule includes, but is not limited to, the following:

- Eligibility standards and submittal requirements for qualified New Mexico patients
- Covered medical services
- Claim and invoice submittal requirements
- Reimbursement standards
- Record retention and audit requirements
- Permitted travel expenses
- Program monitoring
- Grounds for denial, payment holds, and suspensions
- Recovery of overpayments
- Process for review of adverse determinations

The proposed amendment of 7.35.2.7 NMAC would adopt revisions to the Definitions of that rule section, which would be incorporated by reference at 7.35.4.7 NMAC.

The purpose of the proposed rule and rule amendment is to implement the Medical Psilocybin Act, sections 26-2D-1 through -11, NMSA 1978.

The legal authority authorizing the adoption of the rule and rule amendment by the Department is the Department of Health Act, subsection E of section 9-7-6 NMSA 1978, which authorizes the secretary of the department of health to "...make and adopt such reasonable and procedural rules and regulations as may be necessary to carry out the duties of the department and its divisions"; and the Medical Psilocybin Act, at section 26-2D-11(A), NMSA 1978, which requires the Department to administer the Medical Psilocybin Treatment Equity Fund, and at section 26-2D-7(A)(7), NMSA 1978, which requires the Department to establish "other requirements, restrictions and limitations promulgated by the department to ensure an efficacious program."

A free copy of the full text of the proposed rule and proposed rule amendment can be obtained online from the New Mexico Department of Health's website at http://nmhealth.org/about/asd/cmo/rules/or by contacting the Department using the contact information below.

The public hearing will be conducted to receive public comment on the proposed rule and proposed rule amendment. Any interested member of the public may attend the hearing and may submit data, views, or arguments on the proposed rule either orally or in writing during the hearing.

The hearing will be held on November 20, 2026 at the Harold Runnels Building auditorium, located at 1190 St. Francis Drive, Santa Fe, New Mexico.

To access the hearing via the Internet: please go to https://www.microsoft.com/en-us/microsoft-teams/join-a-meeting and then enter the following meeting i.d. code and passcode where indicated on the screen: meeting i.d. code 237 178 592 421 542 and passcode 43sT9gU2 and then click the "Join a meeting" button.
To access the hearing by telephone: please call 1-505-312-4308 and enter phone conference i.d. 589 114 62#

Individuals who wish to receive an e-mailed calendar invitation for the hearing may register online at https://events.gcc.teams.microsoft.com/event/583e4227-4971-47f7-b0bc-0fb1241afdc0@04aa6bf4-d436-426f-bfa4-04b7a70e60ff

All comments will be recorded.

Written public comment regarding the proposed rule can be submitted either by e-mail to Jacob Clark at jacob.clark@doh.nm.gov, or by U.S. postal mail to the following address:

Jacob Clark
NMDOH OGC
P.O. Box 26110
1190 St. Francis Dr., Suite N-4095
Santa Fe, NM 87502-6110

Written comments must be received by the close of the public rule hearing on November 20, 2026. All written comments will be published on the agency website at https://www.nmhealth.org/about/asd/cmo/rules/ within 3 days of receipt, and will be available at the New Mexico Department of Health for public inspection.

If you are an individual with a disability and need special assistance or accommodation to attend or participate in the hearing, please contact Jacob Clark by telephone at (505) 827-2997. The Department requests at least ten (10) days' advance notice to provide special accommodation.